THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
PRINCIPAL BENCH

COMPANY APPLICATION (CAA)-106(PB)/2021

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

In the matter of Scheme of Amalgamation
OF

Bhaktideep Sales Private Limited

.... Applicant No. 1/Transferor Company No. 1

AND

Chamkila Sales Private Limited

.... Applicant No. 2/Transferor Company No. 2

AND

S M Hotel Industries Private Limited

.... Applicant No. 3/Transferor Company No. 3

WITH

Planear Infra Private Limited

.... Applicant No. 4/Transferee Company

Order pronounced on: 18.11.2021

CORAM:

SH. BHASKARA PANTULA MOHAN
MEMBER JUDICIAL
SH. HEMANT KUMAR SARANGI
MEMBER TECHNICAL

Present:
For Applicants: Ms. Rekha Mittal, PCS.

ORDER

PER-BHASKARA PANTULA MOHAN, MEMBER (J)

1. This is an Application filed jointly by the Applicant Companies viz., *Bhaktideep Sales Private Limited* ("Transferor Company No. 1"), *Chamkila Sales Private Limited* ("Transferor Company No. 2"), *S M Hotel Industries Private Limited* ("Transferor Company No. 3") and *Planear Infra Private Limited* ("Transferee Company") under Section 230-232 of the Companies Act, 2013 ("the Act") and other applicable provisions of the Act read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 ("the Rules") in relation to the Scheme of Amalgamation ("Scheme"). The said Scheme is also annexed as Annexure 'A-6' to the Application. The Applicants have made , among others, the following prayers:

a) Dispense with the requirement of convening meetings of shareholders of the Transferor Company Nos. 1 to 3 and the Transferee Company.
b) Dispense with the requirement of convening meetings of the Unsecured creditors of the Transferor Company No.1 to 3 and the Transferee Company.

2. The Affidavits in support of the application affidavits on behalf of the Transferor Company 1 and Transferee Company has been filed by Mr. Lakshya Singla, on behalf of the Transferor Company Nos.2 and 3, affidavit has been filed by Mr. Happy Singla being the authorized signatories of the Applicant Company.

3. It is represented that the application filled by the applicants is maintainable in view of the Rule 3 (2) of the Rules and it is also represented that the Registered office of the Transferee/ Applicant Company is situated within the territorial jurisdiction of this Tribunal and falls within the domain of Registrar of Companies, NCT of Delhi at New Delhi.

4. The Transferor Company No.1 was incorporated under the Companies Act, 1956 on 29.03.1995 with the Registrar of West Bengal, in the name and style of "Bhaktideep Sales Private Limited". The Memorandum of Association with respect to the place of Registered office was altered after confirmation from the Regional Director vide its Order dated 19.01.2021. The Registered office is situated at N-12, Kalkaji, New Delhi-110019.

5. The Transferor Company No.2 was incorporated under the Companies Act, 1956 on 29.03.1995 with the Registrar of West Bengal, in the name and style of "Chamkila Sales Private Limited". The Memorandum of Association with respect to the place of Registered office was altered after confirmation from the Regional Director vide its Order dated 19.01.2021. The Registered office is situated at N-12, Kalkaji, New Delhi-110019.

6. The Transferor Company No.3 was incorporated under the Companies Act, 1956 on 30.04.1988 with the Registrar of Companies, West Bengal, in the name and style of "S M Hotel Industries Private Limited". The Memorandum of Association with respect to the place of Registered office was altered after confirmation from the Regional Director vide its Order dated 18.02.2021. The Registered office is situated at N-12, Kalkaji, New Delhi-110019.

7. The Transferee Company was incorporated under the Companies Act, 2013 on 15.03.2021 with the Registrar of Companies, Delhi and Haryana in the name and style of "Planear Infra Private Limited" having its Registered office at N-12, SQ Second Floor, Kalkaji New Delhi-110019.

8. Perusal of the Application filed by the Applicant Cos indicates the details of the capital structure of the Cos as follows:

S. No.	Company	Date of incorporation	Authorized Share Capital (Rs)	Issued, paid up and subscribed share capital (Rs)	CIN No.
1.	Transferor Company No. 1	29.03.1995	Rs. 1,20,00,000/-, divided into 12,00,000 equity shares of Rs. 10/- each.	Rs. 1,19,38,700/-, divided into 11,93,870 equity shares of Rs. 10/- each.	U70100DL 1995 PTC3 78614
2.	Transferor Company No. 2	29.03.1995	Rs. 1,10,00,000/-, divided into 11,00,000 equity shares of Rs. 10/- each	Rs. 1,09,41,000/- divided into 10,94,100 equity shares of Rs. 10/- each.	U70100DL 1995 PTC 378625
3.	Transferor Company No. 3	30.04.1988	Rs. 2,86,00,000/-, divided into 28,60,000 equity shares of Rs. 10/- each.	Rs. 2,85,90,300/-, divided into 28,59,030 equity shares of Rs. 10/- each.	U55101DL19 88PTC381065
4.	Transferee Company	15.03.2021	Rs. 15,00,000/-, divided into 1,50,000 equity shares of Rs. 10/-	Rs. 1,000/-, divided into 100 equity shares of Rs.	U70109DL20 21PTC378548

			each.	10/- each	

9. It is submitted that the Applicant Companies are closely held private limited Group Companies under common shareholding, management and control. The summary of the written consents/ NoC obtained for the proposed scheme from the Shareholders, Secured and Unsecured Creditors is summarized as under:

Sl No.	Company	No. of Shareholders	Consent given	No. of Secured Creditors	Consent given	No. of Unsecured Creditors	Consent given
1.	Transferor Company No. 1	4	All	Nil	N.A	3	All paid
2.	Transferor Company No. 2	3	All	Nil	N.A	2	All paid
3.	Transferor Company No. 3	13	All	Nil	N.A.	1	All paid
4.	Transferee Company	2	All	Nil	N.A.	2	All paid

10. The Applicant Companies have filed their respective Memorandum and Articles of Association, inter alia, delineating their object clauses as well as Audited Annual Accounts for the year ended 31.03.2021. The Applicant Companies are engaged in the business of infrastructural work, developer, builders, civil, mechanical, electrical projects, to undertake jobs as interior decorators,

interiors designers etc. The objective of amalgamation is to consolidate business into one corporate entity which would result in business synergies, pooling of physical, financial and human resource of the Applicant companies.

11. We have perused the joint applications and the connected documents / papers, filed herewith including the Scheme of Amalgamation contemplated between the Applicant companies.

12. It is further submitted that the board of directors of all the Applicant companies, vide separate Board meetings, held on 10.09.2021 respectively, have unanimously approved the proposed Scheme of Amalgamation and copies of such board resolutions passed thereat, have been placed on record by the companies.

13. All the companies have submitted that no investigation proceedings are pending under the provisions of the Companies Act against any of the applicant company.

14. It has been stated in the application that the Scheme is not prejudicial to the interests of the shareholders, and creditors of the applicant companies. The Scheme will be beneficial to all the applicant companies and their respective shareholders, and creditors.

15. It is submitted that the proposed Amalgamation is sought to be made under the provisions of Section 230 to 232 of the Companies Act, 2013 and that if the same is sanctioned by the Tribunal, the appointed date as provided in the Scheme shall be 01.04.2021.

16. The certificates of statutory auditors of all the applicant companies, confirming that the accounting treatment in the scheme is in compliance of and in conformity with Section 133 of the Companies Act, 2013, have been placed on record.

17. In the facts and taking into consideration the application filed by the Applicant Company the following directions are issued:-

A. **In relation to Transferor Company No.1**

i. **With respect to Equity Shareholders:**

It has four equity Shareholders and all the shareholders have given their consent affidavits in support of the Scheme constituting 100% in value and 100% in number which are on record, hence the necessity of convening a meeting of the same is dispensed with.

ii. **With respect to Secured Creditors:**

As there is no secured creditor in the company the requirement of convening meeting of secured creditors does not arise.

iii. **With respect to Unsecured Creditors:**

It has three Unsecured Creditors and all the Unsecured Creditors have been paid off on 20.092021 and 03.05.2021 therefore, the requirement of convening meeting of Unsecured Creditors does not arise.

B. **In relation to Transferor Company No.2**

i. **With respect to Equity Shareholders:**

It has three equity shareholders and all the shareholders have given their consent affidavits in support of the Scheme constituting 100% in value and 100% in number which are on record, hence the necessity of convening a meeting of the same is dispensed with.

ii. With respect to Secured Creditors:

As there is no Secured Creditors in the company, the requirement of convening meeting of Secured Creditors does not arise.

iii. With respect to Unsecured Creditors:

It has two Unsecured creditors and all the Unsecured Creditors have been paid off on 20.09.2021 therefore, the requirement of convening meeting of Unsecured Creditors does not arise.

C. **In relation to Transferor Company No.3**

i. With respect to Equity Shareholders:

It has 13 equity shareholders and all the shareholders have given their consent affidavits in support of the Scheme constituting 100% in value and 100% in number which are on record, hence the necessity of convening a meeting of the same is dispensed with.

ii. With respect to Secured Creditors:

As there is no Secured Creditor in the company the requirement of convening meeting of secured creditors does not arise.

iii. With respect to Unsecured Creditors:

It has one Unsecured Creditor and the Unsecured Creditor has been paid off on 20.08.2021 and 31.08.2021 therefore, the requirement of convening meeting of Unsecured Creditors does not arise.

D. **In relation to Transferee Company:**

i. **With respect to Equity Shareholders:**

It has two equity shareholders and all the shareholders have given their consent affidavits in support of the Scheme constituting 100% in value and 100% in number which are on record, hence the necessity of convening a meeting of the same is dispensed with.

ii. **With respect to Secured Creditors:**

As there is no secured creditor in the company the requirement of convening meeting of secured creditors does not arise.

iii. **With respect to Unsecured Creditors:**

It has two Unsecured Creditors and all the Unsecured Creditors have been paid off on 20.09.2021 therefore, the requirement of convening meeting of Unsecured Creditors does not arise.

18. The Applicant Companies shall individually send notice to Central Government, through **Regional Director**, Northern Region, Ministry of Corporate affairs, B-2 Wing, 2nd Floor, Paryavaran Bhawan, CGO Complex, New Delhi-110003, Registrar of Companies, NCT of Delhi at 4th Floor, IFCI Tower, 61, Nehru Place, New Delhi-110019, the **Official Liquidator**, Lok Nayak Bhawan, 8th Floor, Khan Market, New Delhi-110001, the office of the **Income Tax Department**, through the Income Tax Cell at DCIT (Delhi High Court Cell),

Lawyer's Chamber, Block No. 1, Room No. 428 & 429, Delhi, High Court, New Delhi, the Notices to Income Tax authorities shall disclose sufficient details like PAN Card numbers, ward Numbers and assessing officers so that timely and proper reply may be filled.

19. All the aforesaid directions are to be complied with, strictly in accordance with the applicable law, including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

20. The application stands **allowed** in the aforesaid terms. Let the copy of the order be served to the parties.

-Sd-

HEMANT KUMAR SARANGI
MEMBER (TECHNICAL)

-Sd-

BHASKAR PANTULA MOHAN
MEMBER (JUDICIAL)